

Bordoni Sacrum Tribunal (EN)

Sacrum Tribunal Iudicum in Causis Sanctae Fidei — Cap. II Quaeres 13; Cap. V Quaeres 6; Cap. VI Quaeres 20; Cap. VII Quaeres 5 (*The Sacred Tribunal of Judges in Causes of the Holy Faith*)

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Corbelletti, 1648**

*English translation of four quaestiones (pp. 57–58, 114–116, 164, 170),
transcribed from the page images of the 1648 edition, with independent
adversarial review; translated 1:1.*

[Cap. II, Quaeres 13 — pp. 57–58]

Quaeres 13. Whether there are any theological loci for proving not only theological conclusions, but also Articles of faith, if they are denied by heretics and infidels?

38. Resp. Theology is argumentative, and has its own loci and arguments for proving its conclusions, and certain principles, and for refuting those who oppose its principles and conclusions.

The first part, that it is argumentative, is gathered from St. Paul, *cap. 1. ad Titum*, where, speaking of the things required in a Bishop, at *num. 9.* he says: *Embracing that faithful word which is according to doctrine, that he may be able to exhort in sound doctrine, and to convince the gainsayers.* Likewise *2. ad Timotheum cap. 3. num. 16.:* *All scripture, inspired of God, is profitable to teach, to reprove, to correct, to instruct in justice.* St. Peter testifies this same thing, *epist. 1. cap. 3. num. 15.,* in these words: *Being ready always to satisfy every one that asketh you a reason of that hope which is in you.* **39.** It is therefore certain *de fide* that sacred Scripture is argumentative, and refutes those who contradict. **40.** The theologian, therefore, constructs arguments — not indeed to prove the principles of Sacred

Scripture and of Theology, which are the Articles of Faith, because Theology agrees in this with the other sciences, which do not prove their own principles, but suppose them as certain and true; and just as by these suppositions the natural sciences proceed to prove other things which are deduced from them, so Theology, by its principles, which are the articles of faith, proceeds to prove other things which are deduced from them. **41.** If, however, in Theology one principle is denied, it can be proved by another conceded within the same Theology; for if this is accomplished in Metaphysics, which not only proves the principles of the other sciences if they are denied (for the inferior sciences do not dispute against those who deny their principles, but leave that office to Metaphysics), but also proves its own, when they are denied by someone — for it is not able to have recourse to another, which is not given — a fortiori this can be done by Theology, which is supreme among all disciplines. Wherefore the theologian, by one or another article of faith conceded by the heretic, will be able to argue so as to prove another article that is denied. In this way St. Paul, *1. Corinth. cap. 15.*, from the Resurrection of Christ proves the Resurrection of all the dead. Moreover, he proves not only one principle that is denied from another that is conceded, but also by the same principles and articles of faith he proves theological conclusions, as from rationality in Christ he proves risibility in the same. Finally, if all the principles of Theology are denied, nothing remains, for him to whom they have been denied, for disputing positively; but then he uses another means, namely, solving the arguments of his adversaries; in this same way Metaphysics proceeds against those who deny all its principles, by solving the arguments objected.

42. The second part, concerning the theological loci, which are numbered in diverse ways, is shown by the review of those set down below.

The first locus is from the authority of Sacred Scripture, for the propositions expressed in it are of eternal truth, to such a degree that, when taken in the premises to prove some conclusion, they are in no way to be denied by a Catholic, nay, nor by anyone else whatsoever; and if one be denied, let it be proved by another, according to what was said above; for sacred Scripture answers all, as St. Gregory says, *23. Moral. cap. 18. & 19.*

43. The second locus is from Apostolic Tradition, which has equal authority with Sacred Scripture, from the things to be proved *seq. cap. q. 13.*

44. The third is from the definition of some dogma *de fide* by the Roman Pontiff by himself, or by a General Council legitimately congregated by his authority.

45. The fourth is from the consensus of the whole Church, for this consensus is equivalent to the definitions of the Supreme Pontiff, and argues that an opinion embraced by the whole Church is true, infallible, and undoubted. But if it has not yet been defined as to be held *de fide*, one who opposes it is not proved formally a Heretic, but is nevertheless most vehemently suspect.

46. The fifth is the consensus of the Fathers. The sixth, the consensus of the Scholastics and of those skilled in Pontifical law. The seventh, Ecclesiastical History. The eighth, natural reason, by which some truth is evidently demonstrated. The ninth, finally, the authority of Philosophers, Legists, and profane Historians. This locus, however, although it is not properly theological, is nevertheless such ministerially, insofar as it helps toward inferring a theological conclusion; for from one natural premise and another *de fide* a theological conclusion is inferred, from what was said here *q. 6. num. 25*. Lay authority is sometimes cited by the sacred Scriptures, as may be seen *Act. cap. 7.*, ad Titum *cap. 1. epist. 1.*, ad Corinth. *cap. 15.*, in which places the sayings of the ancients are cited; to which pertains *cap. Turbat 7. cap. Qui de mensa 10. cap. 51. quid 12. cap. Relatum 13. dist. 37.*

[Cap. V, Quaeres 6 — pp. 114–116]

Quaeres 6. Whether it is to be believed *de fide* that Innocent X is the true Roman Pontiff? which same thing is asked concerning each one individually?

16. *Resp.* It is to be held *de fide* that anyone canonically elected Supreme Pontiff, about whom this is established, is a true Pope; and accordingly that such now is Innocent the Tenth, elected Pope on the 15th day of September 1644, and crowned on the fourth day of October of the same year.

It is proved, first, because that is to be believed *de fide* which is found revealed by God in the Sacred Scriptures, or through tradition, as is clear from what was said *cap. 2. & 3.*; but in John 21, *num. 17*, God revealed that Peter, and his successors, are Pope by this very fact, that one is legitimately elected by the Cardinals; and He constituted him such in those words: *Feed my sheep*; according as He had promised him in other words: *Thou art Peter, and upon this rock I will build my church*. Concerning Peter there is no difficulty, because all who judge rightly concede it, even heretics, and it is established from what was said here *q. 3*. See

Valent. in 2. 2. disp. 1. q. 1. par. 7. §. 27. Suar. lib. 3. contra errores sectæ Angl. cap. 10. Caiet. tract. 3. de Rom. Pontif. cap. 8. & seq. Concerning the successors expressed in the same place in the person of Peter, it is proved both by the authority of the Holy Fathers and by reason. As for the Holy Fathers, everywhere explaining the aforesaid passages not only in the person of Peter but also of his successors, I have adduced three passages under q. 2.; add Cyril of Alexandria, from Caiet. cit. cap. 14., in these words: *As Christ, the leader going forth out of Israel, received from the Father the Scepter of the Church of the gentiles, over every principality and power, over everything whatsoever there is, that all things might bow to him, so also to Peter and to his successors he committed it most fully, so that to none other than Peter did he give what is his own in its fullness, but to him alone he gave it.* The other Cyril, of Jerusalem, speaking in the person of Christ, says: *Thou with an end, and I without end; with all those whom I shall place in thy stead I shall be, fully and perfectly, in Sacrament and in authority, as I am, and with thee.* In the Council of Florence, near the beginning, this truth is defined in these words: *We define that the Holy Apostolic See and the Roman Pontiff hold the primacy over the whole world, and that the Roman Pontiff himself is the successor of Blessed Peter, Prince of the Apostles, and the true Vicar of Christ, and stands as head of the whole Church and father and teacher of all Christians; and that to him, in Blessed Peter, was delivered by our Lord Jesus Christ the full power of feeding, ruling, and governing the universal Church.* The reason is, because the presence and presidency of one head, after Christ's departure and Ascension into Heaven, is no less necessary now, and in the future even to the consummation of the world, than it was from the beginning of the Church, since the members of one body always equally need the influx of their head, separated from which they are dead; therefore, when He said to Peter: *Thou art Peter, and upon this rock I will build my church; and the gates of hell shall not prevail against it; and I will give to thee the keys of the kingdom of heaven; and, thy faith shall not fail; and finally, Feed my sheep* — without doubt He willed it to be said of all those legitimately succeeding, so as to intimate the equal necessity of a head, and its equal power, in every time in which the Church militant is to endure, just as with His own mouth Christ Himself, in the last words of Matthew, promised that He would be present even to the consummation of the world.

It is proved, secondly, from the Bull beginning *Inter curas* of Martin V, containing the condemnation of the two Johns, Wyclif of England and Hus of Bohemia, in which it is prescribed that heretics returning to the bosom of the Church abjure their various errors, among which they are asked whether they believe that a Pope

canonically elected is the successor of blessed Peter, having supreme power in the Church; and those holding the opposite abjure it if they wish to be reconciled to the Church; therefore it is a sign that it is to be believed *de fide* that this or that Pontiff is Pope and the successor of Peter, since abjuration has for its object the heresy to be destroyed, of which it is the detestation, as is gathered **17.** from cap. Ego Berengarius *de consecr. dist. 2 Royas sing. 1. n. 2. Farin. q. 194. de heresi.*

Thirdly, it is proved, because what is believed, held, and solemnized by the whole Church is said to be *de fide*; but all the faithful believe in the Supreme Pontiff, confessing that Innocent X is now the true Pope, for the Church crowned him through the deputed Cardinals, and recognized him as such by receiving his Jubilee and indulgences; and he is solemnized in the prayer of the Mass and in other rites, and all call him Pope; therefore this is to be believed *de fide*, for those things are known to be *de fide* which are embraced in the whole Church.

18. Fourthly, we believe the Pope when he defines something *de fide*, not as he is such-and-such a man, nor with human faith, because as a private man he is compared with others, and just as others, as such, do not have the power of defining, neither does he; moreover, with human faith we do not believe articles of faith, because they rest not upon human truth, under which falsehood can lie, but upon divine truth, from which falsity is far removed; consequently it must be said that the faith which we have toward the Pontiff, that he is Pope, is divine, and accordingly founds an article of faith in the person elected Pope; since it is unfitting to say that we believe with human faith the existence of the Pontiff, but with divine faith the article proposed by him to be believed, seeing that it is no less to be believed that he who defines matters of faith is Pontiff, than that what he defines is an article of faith; for the foundation of believing that the Pope defines a proposition previously uncertain as of faith to be certain *de fide*, without erring in its truth and determination, consists in this, that the person defining it *de fide* is believed to be the true successor of Peter and a real Pope; but this belief cannot be had by human faith, which is uncertain and inconstant; therefore by divine faith; therefore it is *de fide* that this man is the true Pontiff, for what is believed by divine faith is numbered among the articles of faith.

Fifthly, we believe that the Pope has spoken the truth in defining some article of faith, which before was unknown to us, insofar as he has the assistance of the Holy Spirit breathing into him a truth of this kind; but no one can have the assistance of the Holy Spirit for the purpose of defining matters of faith except the Pope, and a general Council legitimately congregated by him and in dependence upon him;

therefore, if we believe that the Pope in defining has spoken truly, we consequently believe that the Holy Spirit has stood by him, breathing the truth into his intellect, and accordingly we cannot but believe, by the same formal reason of divine faith, that this person who defines is the true Pontiff, since these three acts of believing must be specified by the same divine revelation, for they tend to the same thing.

This opinion is taught by almost all the more recent authors, with Suar. *de fide disp. 10. sect. 5.* Azor. *par. 2. lib. 5. cap. 5. q. 4.*; among them Bonac. *de cens. Bullæ disp. 1. q. 2. par. 1 num. 9.*

For the truth of this opinion, however, it is supposed that the election of one man as Pontiff is established; for if the validity of the election is in question, or several have been elected Pontiff, there is no obligation of believing, but only then, when it is determined by some Council that this man, and not that one, is the true Pope; for schisms are taken away by a Council, as I shall prove in the following chapter.

Certain perverse men are wont, at the beginning of someone's election as Pope, led by the passion of their faction, to disseminate the invalidity of the election and to spread it through the world — as, because simony intervened, or because the man elected Pope did not have the fixed number of votes. It may be doubted whether, with this rumor flying about, it is to be believed *de fide* that the man elected is the true Pope, while that suspicion and murmuring last? **19.** I think that, once the coronation of the Supreme Pontiff has been carried out, it is to be held *de fide* by all that the man crowned is the true Pope; for rumor, suspicions, and the lies of detracting men are not to be heeded, since Schismatics are wont, in each and every election of a new Pontiff, to stir up dissensions and divisions, because such is the conventicle of impious men.

You will say, first: Singular propositions do not pertain to faith, since they contribute nothing of utility to it; for it matters little that this host is consecrated, that this man will be saved, that this man has contracted original sin; but it suffices to believe in general that in the Church of God there is the Sacrament of the Eucharist, that men dying without sin are saved, that original sin is contracted; and that singular propositions deduced from universal propositions *de fide* are not *de fide* I have proved *cap. 2. q. 3.*; therefore neither is it to be believed *de fide* that this particular man is Pope, but it suffices to believe indistinctly that there is a true Vicar of Christ. Secondly, if it is *de fide* that Innocent is Pope, it is also *de fide* that he has the requisites for the Papacy, namely, that he is Baptized, a believer, etc., and that he was legitimately elected; but these things are not *de fide*; therefore

neither is that. Thirdly, that proposition is said to be *de fide* which is revealed in terms, from what was said *c. 1. n. 25*. But this one is not revealed; therefore neither is it *de fide*. Fourthly, one who denies that he who is held by all as such is the Supreme Pontiff is not punished as a heretic, but only as a Schismatic; therefore the existence of this Pontiff is not *de fide*.

I respond to the several objections: *to the first*, that there is a broad difference, for not to believe those singular things brings in no inconvenience, but it is the greatest absurdity not to know the head of the Church, or not to be able with certainty to point him out with the finger without any controversy; whence, if this were not *de fide*, there would be no greater reason for believing this or that Bishop to be Pope, if in believing the Pope we relied upon human faith and not divine. *To the second*, I say that those other propositions are to be believed *de fide* concomitantly, or rather are to be called theological propositions deduced from that principal one. *To the third*, it is reckoned to be revealed in terms, since it is contained expressly in that word to Peter: *Feed my sheep*, as is clear from the first proof. *To the fourth* I say that, from the fact that a Schismatic is not punished with the penalties of heretics, it does not follow that he is not sometimes a heretic, but this only indicates that there are special penalties for each of the two. **20.** Nay, I say that the Schismatic is a heretic in this sense of disbelieving the unity of the head.

[Cap. VI, Quaeres 20 — p. 164]

Quaeres 20. Whether all the faithful are bound, for salvation, to receive General Councils?

59. Resp. They are bound in those things which pertain to faith, not in others; although they sin gravely who do not receive a Council, or who prohibit or impede its being published in their own places, provinces, kingdoms, and monarchies.

The first part, that all the faithful are bound to receive a Council, that is, to believe the articles defined in it and to act according to them, is proved, because everyone is bound by divine law to accept and believe articles defined *de fide* and proposed for belief — even the Supreme Pontiff himself; therefore, as to this, all are bound to accept a Council, for in this sense it is not regarded as positive human law, but as divine, containing the things which are to be believed *de fide*.

60. The second, that they who do not receive it sin gravely, is urged. First, because the Fathers congregated in it represent the whole Church, and are seen to subject themselves to the statutes established in the Council, not so much in their own name as in that of the whole Church; for when a General Council is congregated, all the faithful of Christ, through those Fathers, attend to the provision of the whole Church, and accordingly are seen to approve whatever is done in the Council; therefore it ought not afterwards to displease them, but they are bound to accept it. Again, because in Councils matters are treated pertaining to faith and the reformation of morals, to which all are bound by law; therefore they sin who do not accept it. Again, because secular Princes also are called; therefore, if they do not contradict while the statutes are being established, they are seen to approve it, and to will to accept it for themselves and their subjects.

61. The third part, that Princes who impede its promulgation in their dominions sin, is proved. First, because they obstruct Ecclesiastical immunity, which is a grave sacrilege. Again, because they inflict injury and irreverence upon the Supreme Pontiff, who commands its publication throughout the whole world. Again, because in a certain way heretics are permitted and fostered in their errors, when they see the promulgation of the Council impeded by the Princes in their own places, where there are heretics, against whom Councils are ordinarily congregated.

[Cap. VII, Quaeres 5 — p. 170]

Quaeres 5. Whether one who refuses to recognize as Pope a man about the validity of whose election there is doubt is a schismatic?

8. Resp. He is not a Schismatic who does not recognize as Pope one whom he probably thinks not to have been canonically elected Pope, because it is withdrawal and rebellion from the true Pope that makes Schism. But if there are several Popes, and it is not known which of them is the true Pope, on this Bonac. *de legib. disp.* 3. q. 4. p. fin. §. V. num. 2. and Bulla *disp.* 1. q. 2. p. 5. num. 3. §. *Secus*, says that each is to be held, as doubtful, for the Vicar of Christ on earth; the reason is, because just as that is doubtful which hangs equally toward either side, so the faithful of Christ ought to hold each, under doubt, for Pope, not favoring the one more than the other, unless reason persuade otherwise; this same thing Armilla taught, num. 2., with Cajetan. And in this case credence is not readily to be given to

men asserting that this one is the true Pope, not that one; but the judgment of a General Council is to be awaited, to which the decision of this controversy pertains, as I said in the preceding chapter.